

24NNCV02181 24NNCV02181

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-08-14

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Case Number: 24NNCV02181 Hearing Date: August 14, 2026 Dept: A

TENTATIVE RULING

AUGUST 14, 2026

MOTION FOR ATTORNEY'S FEES

Los

Angeles Superior Court Case # 24NNCV02181

MP: Plaintiff

Simon Gharassimian

RP: Defendant

Mercedes-Benz USA, LLC

NOTICE:

The Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is required and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice may be given

either by email at or by telephone at (818) 260-8412.

ALLEGATIONS:

Simon Gharassimian ("Plaintiff") alleges that on October 3, 2023, he purchased a 2023 Mercedes-Benz TRE QE500 Silverado 1500, which was accompanied by express and implied warranties from Defendant Mercedes-Benz USA, LLC ("MBUSA"). Plaintiff asserts that the vehicle was delivered with serious defects and nonconformities to the warranty. Plaintiff claims that despite a reasonable number of repair attempts, Defendant Calstar Motors, Inc. ("Calstar") was unable to conform the vehicle to applicable warranties.

The Complaint, filed June 12, 2024, alleges causes of action for: (1) Violation of Song-Beverly Act – Breach of Express Warranty; (2) Violation of Song-Beverly Act – Breach of Implied Warranty; (3) Violation of Song-Beverly Act § 1793.2; and (4) Negligent Repair.

On September 29, 2025, Plaintiff filed a Notice of Conditional Settlement of Entire Case.

On November 13, 2025, Plaintiff dismissed Calstar without prejudice.

On December 15, 2025, Plaintiff dismissed the entire action of all parties and all causes of action without prejudice and with the Court retaining jurisdiction (C.C.P. § 664.6).

MOTION ON CALENDAR:

On April 17, 2026, Plaintiff filed a Motion for Attorney's Fees. On August 3, 2026, MBUSA filed an opposition. On August 7, 2026, Plaintiff filed a reply.

LEGAL STANDARD:

A prevailing party in an action under the Song-Beverly Act may be entitled to reasonable attorney's fees. (Civ. Code § 1794(d); see also C.C.P. § 1032(a)(4).) The calculation of

attorney's fees under the Song-Beverly Act is based on the lodestar method, which multiplies the number of hours reasonably expended by a reasonable hourly rate. (Graciano v. Robinson Ford Sales (2006) 144 Cal.App.4th 140, 154; Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817-819.) Nonetheless, the prevailing party should not receive a "windfall" through an award of reasonable attorney's fees. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) Thus, a prevailing buyer under the Song-Beverly Act has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 816.)

Once an attorney has presented evidence of their actual time spent and hourly rate charged, the time and hourly rate are presumed to be reasonable, unless "special circumstances" render the award unjust. (Serrano v. Unruh (1982) 32 Cal.3d 621, 639.) An award of attorney fees may be based on counsel's declarations, without production of detailed time records. (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) The verified time statements of attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous. (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 396.)

The California Supreme Court has opined that an attorney should not receive a windfall relative to statutes which award attorney's fees. As such, "plaintiffs' counsel are not permitted to take contractual fees in addition to statutory fees: If the contingency fee is larger than the statutory fee award, counsel is permitted to accept that fee, with a setoff for statutory fees received. If the contingency fee is smaller than the statutory fee, counsel must reimburse the plaintiff from the statutory award for any amounts already paid by the client pursuant to the contingency contract." (Horsford v. Board of Trustees of California State University (2005) 132 Cal.App.4th 359, 401 [citing Flannery v. Prentice (2001) 26 Cal.4th 572, 577].)

EVIDENTIARY OBJECTIONS:

With the opposition, MBUSA submitted evidentiary objections to Plaintiff's motion evidence. The Court rules as follows:

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Richard M. Wirtz

Declaration: The objections to paragraphs 12, 24, and 28 are sustained. The objections to paragraphs 15, 22-23, 25-27, and 29 are overruled.

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Norman F. Taylor

Declaration: The objections to paragraphs 12 and 26 are overruled. The objections to paragraphs 14-20, 23-25 regarding other superior court rulings and other attorney declarations on hourly rates are sustained.

ANALYSIS:

Plaintiff moves for

attorney's fees and costs in the amount of \$45,578.50 in attorney's fees, a 1.5 lodestar multiplier for \$22,789.25, and costs of \$5,494.07, for a total of \$73,861.82.

A.

Prevailing Party and Basis for Attorney's Fees

The parties reached a settlement via Plaintiff's Statutory

Offer to Compromise Pursuant to C.C.P. § 998.

Plaintiff's counsel Richard M. Wirtz includes a copy of Plaintiff's 998 Offer, which states at paragraph 7:

In

addition to the Settlement Funds, MBUSA shall pay attorney fees, costs, and expenses actually and reasonably incurred in the commencement and prosecution of this action pursuant to 1794(d), including post-offer acceptance attorney fees, costs, and expenses incurred in performing on the settlement and/or completing the case, which may be resolved by agreement of Plaintiff and MBUSA or, if the parties cannot agree, upon properly noticed motion to the Court. If a motion is needed, Plaintiff shall be deemed the prevailing party as to all Defendants in this case with respect to all causes of action. If a motion is needed, MBUSA agrees to pay any fees, costs, and expenses awarded by the Court within 45 days of service of notice of entry of the Court's order. The judgment shall be amended to include the fees and costs awarded by the Court or agreed by the parties. MBUSA shall not object to any fees or costs on that grounds that they were incurred in pursuit of Plaintiff's claims against Calstar Motors,

Inc., MBUSA will not challenge any claim for damages, fees, costs or expenses on the basis that Plaintiffs [sic] have not proved a statutory violation, while reserving the right to challenge the reasonableness of any amounts claimed by Plaintiff.

(Wirtz Decl., ¶30, Ex. 7 [998 Offer].)

Mr. Wirtz states that Plaintiff tried resolving fees before filing the motion, but such efforts were unsuccessful because MBUSA did not respond. (Wirtz Decl., ¶38.) He states that if the parties are able to resolve this issue, Plaintiff will withdraw the motion. (Id.)

Based on the parties' 998 Offer and Civil Code, § 1794(d), there is a contractual and statutory basis for fees. The parties do not contest that Plaintiff is the prevailing party and entitled to seek attorney's fees by motion.

B. Amount
of Reasonable Attorney's Fees

Plaintiff
seeks \$45,578.50 in attorney's fees.

The breakdown of Wirtz Law APC's time is as follows:

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Richard M. Wirtz (Managing Attorney of Wirtz Law APC,
admitted 1988): 0 hours for \$0.

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Amy Rotman (Senior Trial Attorney, admitted 2012): 8.6
hours at \$600/hour for \$5,160.

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Jessica R. Underwood (Senior Trial Attorney, admitted
2015): 14.7 hours at \$600/hour for \$8,820.

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Kyle B. Sample (then-Associate Attorney, admitted 2024): 26.9
hours at \$450/hour for \$13,455.

.
Rebecca Evans (Senior Managing Paralegal, paralegal since 2015): 5.4 hours at \$300/hour for \$1,620.

.
Kaitlyn Dols (Paralegal, paralegal since 2023): 5.5 hours at \$250/hour for \$1,375.

(Wirtz Decl., ¶¶1-2, 4, 13, 17-21; Ex. 1 [Wirtz Law's Billing Records].)

The breakdown of Norman Taylor & Associates' time is as follows:

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Norman F. Taylor (Principal of Norman Taylor & Associates, admitted 1988): 21.30 hours at \$645/hour for \$13,738.50.

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Nick McNaughton (Paralegal, 30 years' experience): 1.9 hours at \$200/hour for \$570.

.
Lusine Musat (Paralegal, 15 years' experience): 6.8 hours at \$123.53/hour for \$840.

(Taylor Decl., ¶¶1, 5, 12-13; Ex. 1 [Norman Taylor's Billing Records].) Although Mr. Taylor identified paralegal Lori Richardson in his declaration, the billing records do not show that she billed any time.

1.
Hourly Rate

MBUSA opposes the hourly rates charged by Plaintiff's counsel, arguing that the rates are excessive for a routine lemon law case and the action did not require a team of attorneys to resolve. MBUSA argues that the parties did not conduct a vehicle inspection, engage in expert discovery, or go to arbitration. It argues that matter settled after the parties attended private mediation. (Opp. at pp.9-10.)

The Court finds some of the hourly rates to be excessive. The Court notes that while Plaintiff provides a chart of approved hourly rates from other superior court cases, this Court is not bound by the findings of the other courts. (See Wirtz Decl., ¶24, Ex. 4; Taylor Decl., ¶¶14-19.)

While the Court appreciates counsels' work on the matter, the Court reduces the hourly rates as follows.

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For Wirtz Law APC, the Court reduces Amy Rotman and Jessica R. Underwood's hourly rate to \$500; Kyle B. Sample's hourly rate to \$325; and paralegals Rebecca Evans and Kaitlyn Dols's hourly rates to \$200.

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For Norman Taylor & Associates, the Court reduces Norman F. Taylor's hourly rate to \$500.
No reductions will be made for Nick McNaughton's \$200/hour Lusine Musat's \$123.53/hour rates.

From these revised rates, the Court will consider whether reductions to the hours billed are appropriate.

2.

Hours Billed

MBUSA seeks a reduction of time for the "unnecessary" association of counsel, overlapped billing, client communications, administrative tasks, and anticipated/unbilled time. (Opp. at pp.13-14.)

The Court notes that Norman Taylor & Associates billed from February 7, 2024 to January 17, 2025.
Wirtz Law APC billed from January 13, 2025 to the present.

MBUSA seeks to reduce hours for client communications billed. Based on the Court's review of Norman Taylor & Associates' billing records, no reduction will be made for client communications. The Court will reduce Jessica R. Underwood's hours (approximately 5.6 hours) by 2 hours, but will

allow the modest time billed by the other attorneys and paralegals to remain.

MBUSA also seeks to reduce the time spent by Norman Taylor & Associates' paralegal Lusine Musat's 2 hours to update Abacus, Caption & Grid to scan documents, input dates, and calendar deadlines. While the Court will allow for paralegal time, these particular items are secretarial in nature and thus will be reduced by 2 hours of Lusine Musat's time.

Finally, MBUSA seeks to reduce Wirtz Law APC's anticipated time: (1) 2.5 hours of Amy Rotman's time for the reply on this motion; (2) 0.3 hour of Rebecca Evans's time to file the reply; (3) 2 hours of Amy Rotman's time to attend the hearing; (4) 0.1 hour of Rebecca Evans's time to prepare the notice of ruling on the fees' motion; (5) 0.1 hour of Rebecca Evans's time to serve the notice of ruling; (6) 0.1 hour of Rebecca Evans's time to draft a request for dismissal; and (7) 0.1 hour of Rebecca Evans's time to file and serve the request for dismissal. The Court will reduce Amy Rotman's time by 1 hour to attend the hearing and 0.7 hour of Rebecca Evans's anticipated time to prepare and serve documents.

Based on the reduced hourly rates and time, the Court adjusts the total attorney's fees incurred by Wirtz Law APC as follows:

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Richard M. Wirtz: 0 hours for \$0.

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Amy Rotman: 7.6 hours (= 8.6 requested hours – 1-hour reduction) at \$500/hour for \$3,800.

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Jessica R. Underwood: 12.7 hours (= 14.7 requested hours – 2-hour reduction) at \$500/hour for \$6,350.

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Kyle B. Sample: 26.9 hours at \$325/hour for \$8,742.50.

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Rebecca Evans: 4.7 hours (= 5.4 requested hours – 0.7-hour reduction) at \$200/hour for \$940.

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Kaitlyn Dols: 5.5 hours at \$200/hour for \$1,100.

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TOTAL: \$20,932.50

Based on the reduced hourly rates and time, the Court adjusts the total attorney's fees incurred by Norman Taylor & Associates as follows:

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Norman F. Taylor: 21.30 hours at \$500/hour for \$10,650.

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Nick McNaughton: 1.9 hours at \$200/hour for \$380.

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Lusine Musat: 4.8 hours (= 6.8 requested hours – 2-hour reduction) at \$123.53/hour for \$592.94.

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TOTAL: \$11,622.94

Accordingly, the Court is inclined to grant the motion for attorney's fees in the amount of \$32,555.44 as allocated above.

3.

Lodestar Multiplier

Plaintiff seeks a 1.5

lodestar multiplier based on the risky, contingent nature of the fee award, the uncertainty of prevailing on the merits, and the delay as Plaintiff's counsel was not paid the fees and costs they incurred.

(Mot. at pp.8-9.) Total, Plaintiff seeks \$22,789.25 as a lodestar enhancement (based on the requested \$45,578.50 attorney's fees amount).

The Court declines to award a multiplier as requested by Plaintiff. While the Court recognizes that Plaintiff's counsel obtained a favorable outcome for their client, the

Court declines to award a lodestar multiplier based on the facts of this case, which did not amount to a complicated Song-Beverly case. The request for a multiplier is denied.

4.

Costs

Plaintiff requests \$5,494.07 in costs and expenses.

Plaintiff argues that MBUSA did not timely challenge Plaintiff's memorandum of costs, such that the costs are due and owing. Thus, Plaintiff seeks the inclusion of costs in this order for judicial economy.

On January 29, 2026, Plaintiff filed two Memorandums of Cost. The first one was filed by Richard M. Wirtz, seeking \$4,510.76 for: (1) \$120 in Filing and Motion Fees; (4) \$2,205.80 in Deposition Costs; (5) \$95 for Service of Process; (8) \$15 in Witness Fees; (11) \$625 in Court Reporter Fees as established by statute; (14) \$317.80 for Fees for Electronic Filing or Service; and (16) \$1,312.16 in Other fees. The second one was filed by Norman F. Taylor, seeking \$983.31 for: (1) \$435 in Filing and Motion Fees; (5) \$164.80 for Service of Process; (14) \$108.51 for Fees for Electronic Filing or Service; and (16) \$125 in Other fees.

The 998 Offer states that, at Plaintiff's election, the reasonable attorneys' fees, costs, and expenses shall be determined by the Court by way of a noticed motion.

MBUSA does not argue against Plaintiff's requested costs and expenses by way of the opposition or by filing a separate motion to tax costs.

As such, the Court grants the motion as to \$4,510.76 for Wirtz Law APC's costs and expenses and \$983.31 for Norman Taylor & Associates' costs and expenses, or \$5,494.07 in total costs.

RULING:

In the event a party requests a signed order or the court in its discretion elects to sign a formal order, the following form will be either electronically signed or signed in

hard copy and entered into the court's records.

ORDER

Plaintiff Simon

Gharassimian's Motion for Attorney's Fees came on regularly for hearing on August 14, 2026, with appearances/submissions as noted in the minute order for said hearing, and the court, being fully advised in the premises, did then and there rule as follows:

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MOTION FOR ATTORNEY'S FEES, COSTS, AND EXPENSES IS GRANTED in the amount of \$32,555.44 IN ATTORNEY'S FEES (\$20,932.50 TO WIRTZ LAW APC AND \$11,622.94 TO NORMAN TAYLOR & ASSOCIATES) AND \$5,494.07 IN COSTS AND EXPENSES (\$4,510.76 TO WIRTZ LAW APC AND \$983.31 TO NORMAN TAYLOR & ASSOCIATES).

Plaintiff

TO GIVE NOTICE.

IT IS SO ORDERED.